

		with his practice, and he was forced to move to South Carolina to receive treatment. He stated he consented to the seizure of his law practice, and he explained the efforts he had undertaken to try to wind it down and transfer open cases. With the current motion, Petitioner has made its strongest and most complete showing, and has convinced the court it has collected all the information it reasonably can relating to its performance of its duties and responsibilities under the court's March 2, 2016 order authorizing Petitioner to assume jurisdiction over Mr. Negrete's law practice. Although Petitioner has established it completed several of the tasks it was ordered to do, Petitioner also has demonstrated it is unable to confirm whether it performed all the tasks it was directed to perform pursuant to the court's order. Nonetheless, it is clear the law practice has been wound down and Petitioner has not heard from any former clients of Mr. Negrete for a considerable period of time. As such, the court is inclined to grant the petition, but before doing so, the court must hear from certain decision makers with Petitioner as to Petitioner's compliance with the court's order in this case and what policies and procedures can be implemented to improve such performance in future cases. Accordingly, the hearing on this motion is CONTINUED TO THURSDAY, AUGUST 6, 2026, AT 2:00 P.M., IN DEPARTMENT C23. The court orders either Deputy Chief Trial Counsel Christopher G. Jagard or Assistant Chief Trial Counsel Cindy Chan to appear at the continued hearing (remote appearance is acceptable). Prior to the hearing, the attorney appearing at the hearing is ordered to review the court's March 2, 2016 order authorizing the assumption of jurisdiction over Mr. Negrete's practice and the motions and all supporting papers Petitioner filed on or about September 4, 2024, June 4, 2025, and May 8, 2026. Counsel should be prepared to discuss Petitioner's performance under the March 2, 2016 order in light of the information provided in the above-referenced motion. Petitioner is ordered to give notice of this ruling.
7	<i>Park vs. Miyamoto</i> <i>2023-01364050</i>	Before the court is a motion filed by plaintiff Christine Park (Plaintiff) to strike and/or tax costs of defendants Steven A. Miyamoto, DDS and Fullerton Oral & Maxillofacial Surgery (collectively, Defendants). As set forth below, the motion is GRANTED IN PART and DENIED IN PART, and

		Defendants are awarded total costs in the sum of \$17,711.94 with the balance sought stricken. Allowable costs "shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation" and "reasonable in amount." (Code Civ. Proc., § 1033.5, subd. (c)(2)-(3).) If the items on a verified memorandum of costs appear to be proper charges, the memorandum is prima facie evidence of their propriety and the burden is on the party contesting them to show they were not reasonable or necessary. (<i>Foothill-De Anza Comm. College Dist. v. Emerich</i> (2007) 158 Cal.App.4th 11, 29; <i>Wagner Farms, Inc. v. Modesto Irrigation Dist.</i> (2006) 145 Cal.App.4th 765, 773-74.) The party challenging costs does not meet this burden by arguing the costs were not necessary or reasonable, but must present evidence and prove the costs are not recoverable. (<i>Seever v. Copley Press, Inc.</i> (2006) 141 Cal.App.4th 1550, 1557; see also <i>Wagner Farms, supra</i>, 145 Cal.App.4th at pp. 777-78.) If the claimed items are not expressly allowed by statute and are objected to by a motion to strike or tax costs, the burden of proof is on the party claiming them as costs to show the charges were reasonable and necessary. (<i>Foothill-De Anza Comm. College Dist., supra</i>, 158 Cal.App.4th at p. 29.) Whether a cost item was reasonably necessary to the litigation is a question of fact for the court to determine. (<i>Id.</i> at pp. 29-30.) <u><i>Item No. 1: Filing and Motion Fees:</i></u> Filing and motion fees are specifically allowed as costs under Code of Civil Procedure section 1033.5, subdivision (a)(1). Plaintiff failed to show the challenged costs were not reasonable or necessary. Plaintiff cites no authority showing these costs should not be recoverable because Defendants did not prevail on the motions and because Defendants were apparently unwilling to discuss settlement at the Mandatory Settlement Conference. Simply because a party did not prevail on a motion does not mean it was unnecessary. Further, Defendants were ordered to file a Mandatory Settlement Conference statement in advance of the Mandatory Settlement Conference. (See ROA 26.) The motion as to these items is DENIED. <u><i>Item No. 4: Deposition Costs:</i></u> Deposition costs are specifically allowed as costs under Code of Civil Procedure section 1033.5, subdivision (a)(3). Considering the allegations in the complaint pertaining to Plaintiff's shingles
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	infection, it is not clearly shown the challenged item was not reasonable or necessary. The motion as to this item is DENIED. <u>Item No. 5: Service of Process:</u> Costs for service of process are specifically allowable under Code of Civil Procedure section 1033.5, subdivision (a)(4). In the opposition, Defendants explained the two service of process costs are related to serving a deposition subpoena on Plaintiff's subsequent treater, Sung Im, M.D. Defendants state the address provided by Plaintiff for Sung Im, M.D. was no longer an accurate address and thus Defendants made several attempts to locate and serve Sung Im, M.D. The service of process on Kyongbin Im, M.D. was the result of one of Defendants' failed attempts to locate Sung Im, M.D. Plaintiff failed to show the costs claimed were not reasonable or necessary. The motion as to these items is DENIED. <u>Item No. 8: Expert Witness Fees:</u> Plaintiff contends \$23,735 for postoffer expert witness fees should be stricken because Defendants' statutory offers to compromise pursuant to Code of Civil Procedure section 998 (998 Offer) had no reasonable prospect of acceptance. (See Code Civ. Proc., § 998(c)(1); Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial (The Rutter Group, June 2025 Update) ¶ 12:598, citing <i>Santantonio v. Westinghouse Broadcasting Co., Inc.</i> (1994) 25 Cal.App.4th 102, 116; see also <i>Wear v. Calderon</i> (1981) 121 Cal.App.3d 818, 821; <i>Arno v. Helinet Corp.</i> (2005) 130 Cal.App.4th 1019, 1024.) For award of expert witness fees and costs under § 998(c), a pretrial offer must be realistically reasonable in the circumstances of the particular case. It must carry with it some reasonable prospect of acceptance. Normally, a token or nominal offer will not satisfy this good faith requirement unless it is absolutely clear that no reasonable possibility exists that the defendant will be held liable. (Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial (The Rutter Group, June 2025 Update) ¶ 12:707 citing <i>Wear v. Calderon</i> (1981) 121 Cal.App.3d 818, 821; <i>Arno v. Helinet Corp.</i> (2005) 130 Cal.App.4th 1019, 1024.) If defendant prevails at trial, that fact constitutes prima facie evidence that the offer was reasonable. The burden is therefore on the offeree to prove the offer was in bad faith. (Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial (The Rutter Group, June 2025 Update) ¶ 12:710 citing <i>Smalley v. Subaru of America, Inc.</i> (2022) 87 Cal.App.5th 450, 458;
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		<i>Licudine v. Cedars-Sinai Med. Ctr.</i> (2019) 30 Cal.App.5th 918, 926; <i>Najah v. Scottsdale Ins. Co.</i> (2014) 230 Cal.App.4th 125, 143-144.) Whether a section 998 offer is in “good faith” must be determined under the circumstances of the particular case. The trial court’s determination will not be reversed on appeal except for clear abuse of discretion. (Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial (The Rutter Group, June 2025 Update) ¶ 12:711, citing <i>Arno v. Helinet Corp.</i>, <i>supra</i>, 130 Cal.App.4th at p. 1024; <i>Clark v. Optical Coating Lab., Inc.</i> (2008) 165 Cal.App.4th 150, 185; <i>Najah v. Scottsdale Ins. Co.</i> (2014) 230 Cal.App.4th 125, 144.) The reasonableness of an offer is determined by evaluating (1) “whether the offer represents a reasonable prediction of the amount of money, if any, defendant would have to pay plaintiff following a trial, discounted by an appropriate factor for receipt of money by plaintiff before trial, all premised upon information that was known or reasonably should have been known to the defendant”; and (2) “whether [plaintiff’s] information was known or reasonably should have been known to [defendant].” (Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial (The Rutter Group, June 2025 Update) ¶ 12:712 quoting <i>Whatley-Miller v. Cooper</i> (2013) 212 Cal.App.4th 1103, 1112-1113.) Here, given Defendants had lost on summary judgment based on the court’s determination triable issues of material fact existed, Plaintiff had an expert to support her positions as shown in Plaintiff’s opposition to Defendants’ motion for summary judgment (attached as Exhibit M to Defendants’ opposition to the instant motion), and this case involved complex legal and medical issues as Defendants assert, an offer for waiver of costs was not realistically reasonable under the circumstances of this case. The motion as to this item is GRANTED and this item of costs shall be stricken. <u><i>Item No. 11: Court Reporter Fees as Established by Statute:</i></u> Plaintiff contends \$12,928.25 in court reporter fees should be stricken because, prior to trial, the parties agreed to split the costs of the court reporter for trial. (See Sirey Decl., ¶ 12.) Defendants do not dispute the existence of the parties’ agreement to split the cost of the court reporter. Defendants failed to offer any evidence showing the agreement “merely governed the administrative allocation of payment at the time the expense was incurred” as Defendants claim. The court thus will enforce the parties’ agreement to split the cost of the court reporter
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		and tax these costs. (See <i>Anthony v. Li</i> (2020) 47 Cal.App.5th 816, 824-825 [“if the parties wanted to allow recovery of the apportioned fee [by] the prevailing party as an item of cost, they were free to spell this out in their agreement,’ but such a provision will not be read into the agreement”].) The motion as to this item is GRANTED and this item of costs shall be stricken. <u>Item No. 12: Models, Enlargements, and Photocopies of Exhibits:</u> Plaintiff contends it is unclear from Defendants’ Memorandum of Costs whether the \$1,960.95 in claimed costs are for exhibits actually used at trial. (See Code Civ. Proc., § 1033.5, subd. (a)(13).) The opposition shows the costs claimed are for models, exhibits, or enlargements used at trial. (See Opp. at p.10:11-14 and Ex. Q.) Plaintiff did not specifically address this item in the reply and thus appears to concede the charges are proper. The motion as to this item is DENIED. Based on the foregoing, the motion is GRANTED as to \$23,735 for post-offer expert witness fees and \$12,928.25 in court reporter fees, and thereto a total of \$36,663.25 is stricken from the memorandum of costs, which means \$17,711.94 of the \$54,375.19 sought in the memorandum of costs is awarded to Defendants. Counsel for Plaintiff shall give notice of this ruling.
8.	<i>Health and Wellness Lifestyle Club, LLC. vs. Valentine</i> 2023-01358654	Before the court is the motion to tax costs on appeal filed by petitioner Health and Wellness Lifestyle Club, LLC (Petitioner) directed to certain costs claimed in the memorandum of costs on appeal filed by respondent Grove Point Investments, LLC (Respondent). As more fully set forth below, the motion is GRANTED IN PART and DENIED IN PART. By this motion Petitioner challenges item nos. 1, 2, 4, and 6 sought in Respondent’s memorandum of costs. A valid costs memorandum establishes a prima facie case for recovery. Thus, the burden is on the party moving to strike or tax costs to establish that each disputed item is not recoverable. (<i>Bach v. County of Butte</i> (1989) 215 Cal.App.3d 294, 308; see <i>Ladas v. California State Auto. Ass’n</i> (1993) 19 Cal.App.4th 761, 774-776.) Indeed, there is no requirement that copies of bills, invoices, statements or any other such documents be attached to the memorandum. Documentation must be submitted only when a party dissatisfied with the costs claimed in the